

1.

CASE #	CASE NAME	HEARING NAME
CVRI2500801	GAUSE VS SARDONI	MOTION TO COMPEL FURTHER RESPONSES OF DEFENDANT THOMAS W. SARDONI TO FORM INTERROGATORIES BY JOSH GAUSE

Tentative Ruling: Hearing continued to 8/25/26.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2600408	OLIVEROS VS WORKFORCE MANAGEMENT GROUP INCORPORATED	MOTION FOR LEAVE TO AMEND COMPLAINT ON COMPLAINT FOR WRONGFUL TERMINATION (OVER \$35,000) OF ROKSANA OLIVEROS BY ROKSANA OLIVEROS

Tentative Ruling: Plaintiff Roksana Oliveros's ("Plaintiff") Motion for Leave to File a First Amended Complaint ("FAC") is granted. Plaintiff must separately file its FAC within 20 days of this ruling.

Under Code of Civil Procedure §§ 473(a) and 576, trial courts have broad discretion to allow a party to amend any pleading at any stage of the proceeding "in furtherance of justice". C.C.P. §473 authorizes the court to grant leave to amend any pleading "in furtherance of justice, and on such terms as may be proper." A motion for relief under CCP § 473 is addressed to the sound discretion of the trial court, and the exercise of that discretion will not be disturbed on appeal unless there is a clear showing that it was abused. (*Carroll v. Abbott Laboratories, Inc.* (1982) 32 Cal.3d 892, 897-898; *Record v. Reason* (1999) 73 Cal.App.4th 472, 486.)3.1324(b).

CCP §472 permits the amendment of any pleading once as a matter of course before the answer or demurrer is filed, or after demurrer and before trial. (*Gross v. Department of Transportation* (1986) 180 Cal.App.3d 1102, 1105.) Otherwise, amendment of any pleading requires prior order of court. CCP §473 provides that following a noticed motion, the court may allow an amendment to any pleading. CCP §473 and §576, and case law establish a "policy of great liberality in permitting amendments at any stage of the proceeding." (*Rocky Mountain Export Co. v. Colquitt* (1960) 179 Cal.App.2d 204, 207.) This policy is so strong that denial of a motion for leave to amend is rarely justified. (*Morgan v. Sup. Ct.* (1959) 172 Cal.App.2d 527, 530.) This policy is intended to allow cases to be decided on their substantial merits. Generally, it is an abuse of discretion to deny leave to amend if there is any reasonable possibility that a defect in the complaint can be cured.

The Court finds that Plaintiff has satisfied the procedural requirements of California Rules of Court, Rule 3.1324. Plaintiff's counsel submitted a supporting declaration specifying the effect of the amendments, why they are necessary, when the new facts were discovered, and why the request was not made earlier.

In her supporting declaration, Plaintiff's counsel, Andrea Diaz, details the specific grounds for seeking leave to amend the complaint, satisfying the procedural requirements of California Rules of Court, Rule 3.1324(b). The primary effect of the First Amended Complaint (FAC) is the addition of two new causes of action under the California Fair Employment and Housing Act (FEHA): Sex/Gender Harassment and Sex/Gender Discrimination, (specifically paragraphs 21 through 26) describing sexually explicit harassment Plaintiff allegedly endured from two coworkers, Rosa and Priscilla. (Diaz Decl. ¶3).

Counsel declares the amendments are necessary and proper because the new claims arise from the same employment relationship and the same course of unlawful workplace conduct already at issue in the original litigation. (Diaz Decl. ¶4). Permitting the amendment is intended to allow all of Plaintiff's related claims—including those regarding disability and wage-and-hour violations—to be adjudicated together. (Diaz Decl. ¶6).

Plaintiff did not seek leave to amend earlier because the supporting facts were developed in the course of the ongoing investigation post-filing, and Counsel maintains that they acted promptly once these facts were established. (Diaz Decl. ¶6). The proposed FAC adds two causes of action under the Fair Employment and Housing Act ("FEHA"): Sex/Gender Harassment and Sex/Gender Discrimination. These claims arise from the same employment relationship and the same general set of facts as the original Complaint. Because the amendments arise from the same course of unlawful workplace conduct already at issue, they are "necessary and proper" to allow for a full adjudication of the related claims in a single action.

The most critical factor in determining whether to grant leave is the existence of prejudice to the opposing party. The party opposing the amendment bears the burden of demonstrating "real prejudice". *Branick v. Downey Savings & Loan* (2006) 39 Cal.4th 235, 242; *Haley v. Dow Lewis Motors, Inc.* (1999) 72 Cal.App.4th 497, 506-507. Prejudice typically exists where an amendment would require delaying trial, result in the loss of critical evidence, or cause a significant increase in the burden of discovery on the eve of trial.

The Court finds Defendants' claims of prejudice unavailing, particularly given the early stage of these proceedings. This action is in its infancy. The original Complaint was filed on January 14, 2026, and the pleadings were only recently joined. There is currently no trial date set for this matter. Prejudice typically exists when an amendment requires delaying a trial or occurs on the "eve of trial." Defendants' claim of being "misled" or burdened is weakened by the fact that they will have a full and fair opportunity to conduct discovery directed specifically at the new claims. The initial Case Management Conference is not scheduled until August 24, 2026, and no discovery or motion cut-off dates have passed. Granting leave will not require a continuance and will not delay the resolution of the action. Defendants will have a full and fair opportunity to conduct discovery directed to the new claims.

Furthermore, any challenge to the legal sufficiency of the new claims is premature; the "preferable practice" is to permit the amendment and allow the opposing party to test the pleading's merits via a demurrer or motion for judgment on the pleadings. While Defendants argue that the new claims materially expand the scope of the case, California law establishes that a change in legal theory or the fact that an amendment might lead to a more favorable result for the Plaintiff does not constitute legal prejudice. Because there is no trial date and discovery remains open, any added cost of preparation does not constitute the type of prejudice that justifies denying a party the right to assert a meritorious cause of action.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2600657	WARD VS CITI GSM PORTFOLIO, LLC	MOTION TO QUASH SERVICE OF SUMMONS ON COMPLAINT FOR OTHER REAL PROPERTY (OVER \$35,000) OF CHANICE WARD BY CITI GSM PORTFOLIO, LLC, FAY SERVICING, LLC

Tentative Ruling: Defendants CITI GSM PORTFOLIO, LLC and FAY SERVICING, LLC ("Defendants") Motion to for an order quashing the purported service of the Summons and Complaint effectuated on May 29, 2026 is granted.

Order to Show Cause is set for 9/24/26 as to why sanctions not to exceed \$1,500.00 or dismissal should not be imposed for Failure to timely file proof of service ALL defendants on complaint pursuant to CRC 3.110(b & f) as to CHANICE WARD

The Court first notes that Plaintiff Chanice Ward ("Plaintiff") has failed to file any opposition to the instant motion [User Query]. Under California law, the failure of a responding party to file points and authorities in opposition to a motion may be considered by the court as an admission that the motion is meritorious.

Herzberg v. County of Plumas (2005) 133 Cal.App.4th 1, 20.

Under C.C.P., § 418.10(a), a defendant may file a motion to quash service of summons on the following grounds: (1) lack of jurisdiction; (2) inconvenient forum; or (3) dismissal pursuant to a delay in prosecution. When a defendant challenges the court's personal jurisdiction on the grounds of improper service of process, the plaintiff has the burden to prove the existence of jurisdiction by proving the facts requisite to an effective service. (*Summers v. McClanahan* (2006) 140 Cal.App.4th 403, 413). Without valid service of summons, the court never acquires jurisdiction over defendant. (C.C.P. § 418.10(a)(1); see *Kremerman v. White* (2021) 71 Cal.App.5th 358, 371 ["compliance with the statutory procedures for service of process is essential to establish personal jurisdiction."] A defendant is under no duty to respond in any way to a defectively served summons. It makes no difference that defendant had actual knowledge of the action. Such knowledge does not dispense with statutory requirements for service of summons and is not alone sufficient to confer jurisdiction. (*American Express Centurion Bank v.*